



TEAMEnvironment KENYA



TRIPARTITE MEMORANDUM OF UNDERSTANDING

Between

KABARAK UNIVERSITY,

And

TEAM ENVIRONMENT ASSOCIATION KENYA

And

KENYA FOREST RESEARCH INSTITUTE

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MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (hereinafter referred to as the "MOU") was executed on the 16th day of December, 2024, between Kabarak University of P.O. Private Bag 20157 Kabarak, Nakuru County (hereinafter referred to as "KABU"), Team Environment Association Kenya of P.O. Box 13495 – 00400, with office location on Mama Ngina Street, Norwich Union House 2nd Floor, Nairobi County (hereinafter referred to as "TEK"), and the Kenya Forestry Research Institute (KEFRI) Regional Office located in Marigat Subcounty, Baringo County, with its headquarters at Muguga off Nairobi-Nakuru Highway, P.O Box 20412-00200 Nairobi, Kenya (hereinafter referred to as "KEFRI").

Definition of Terms:

1. **KABARAK UNIVERSITY (KABU):** A private Chartered institution of higher learning that provides holistic Christian-based quality education, professional training, research, and outreach activities. The University focuses on equipping learners with knowledge and skills relevant to solving real-world challenges while emphasizing environmental sustainability and service to society.
2. **TEAM ENVIRONMENT ASSOCIATION KENYA (TEK):** A socio-economic and environmental organization comprising a wide range of stakeholders including corporate organizations, social enterprises, youth and women groups, schools, and other institutions. TEK's mandate involves promoting environmental conservation, climate action, sustainable development, and empowering communities through capacity building and advocacy. Registered under the Societies Act (registration number 49119), TEK is actively engaged in collaborative climate change initiatives and green economy projects.
3. **KENYA FOREST RESEARCH INSTITUTE (KEFRI):** A state corporation under the Ministry of Environment, mandated to undertake research in forestry and allied natural resources, established under the Science, Technology, and

Innovation Act of 2013. KEFRI plays a critical role in developing and disseminating knowledge, innovations, and technologies that enhance sustainable forest management and conservation.

This Tripartite Memorandum of Understanding establishes the framework for cooperation between the Parties (KABU, TEK, and KEFRI), emphasizing mutual respect and partnership in achieving environmental sustainability and climate change mitigation goals. The MoU further outlines the collaborative activities, obligations, and roles of each party, creating a solid foundation for engagement and collective impact on environmental conservation, climate action, and related research activities.

ARTICLE 1: Purpose and Objectives

The primary purpose of this MoU, which is **NOT** intended to be legally binding between the parties, is to facilitate a long-term, sustainable partnership between the parties in addressing environmental and climate-related challenges. The objectives of this MoU include:

- 1.1. **Fostering Collaboration:** The Parties will work together in a coordinated effort to strengthen environmental conservation and climate action strategies through research, public awareness, education, and community-based initiatives.
- 1.2. **Capacity Building and Knowledge Exchange:** This partnership aims to create opportunities for capacity building, knowledge sharing, and technical exchange among the parties, academic institutions, government agencies, and local communities.
- 1.3. **Promoting Sustainable Environmental Practices:** The partnership will emphasize the adoption of sustainable and climate-resilient practices in tree planting, ecosystem restoration, land management, and environmental conservation activities.
- 1.4. **Supporting Policy Advocacy:** The MoU will focus on generating evidence-based policy recommendations to influence national and local environmental policies that

contribute to achieving the national climate goals and international climate commitments such as the Paris Agreement.

1.5. **Resource Mobilization and Project Development:** The parties will actively pursue joint fundraising efforts to support the implementation of projects aligned with environmental conservation, climate change mitigation, and adaptation.

ARTICLE 2: Principles of Partnership

The Parties will be guided by the following key principles in their collaboration:

2.1. **Accountability and Transparency:** The parties will commit to democratic accountability, transparent governance, and clear reporting mechanisms for any funds received and spent for collaborative projects. Financial management will be in strict compliance with relevant laws and regulations.

2.2. **Respect for the Rule of Law:** All activities conducted under this MoU will fully comply with the Constitution of Kenya, environmental laws, regulations, and policies, as well as relevant international commitments such as the United Nations Sustainable Development Goals (SDGs) and the United Nations Framework Convention on Climate Change (UNFCCC).

2.3. **Equity and Inclusivity:** The partnership will ensure active engagement and participation of all stakeholders, including marginalized groups such as women, youth, indigenous communities, and people with disabilities, in the planning and implementation of activities.

2.4. **Sustainability and Resilience:** The collaboration will emphasize sustainability in project design, execution, and monitoring, ensuring long-term environmental, social, and economic benefits. Resilience to climate change and other environmental threats will also be a key consideration in project design.

2.5. **Proactive Communication:** The parties will foster a culture of openness, providing timely and accurate information about the partnership, its activities, and

outcomes. Proactive disclosure of information will enable transparency and public participation.

ARTICLE 3: Areas of Partnership

In order to achieve the objectives of this MoU, the parties agree to cooperate in the following areas of mutual interest:

3.1. Climate Action, Restoration, and Environmental Projects:

The parties will collaborate in the planning, implementation, and scaling of climate action initiatives. This includes, but is not limited to, organizing the Annual Climate Action, Green Growth, and Landscape & Ecological Restoration Conferences to engage stakeholders, share knowledge, and develop strategies for improving environmental resilience.

3.2. Botanical Garden and Tree Nursery Development:

A key focus will be the establishment of a state-of-the-art botanical garden and tree nursery at Kabarak University. The goal is to propagate tree species that are climate-resilient, including indigenous and endangered species, with the aim of producing over one million seedlings annually. These nurseries will serve as demonstration sites for research and community outreach, offering educational programs on agroforestry, biodiversity conservation, and sustainable land-use practices.

3.3. Research, Data Collection, and Innovation:

KEFRI will lead research efforts in afforestation, reforestation, climate resilience, and forest ecosystems. This includes conducting field studies, gathering data on forest cover changes, and contributing to publications on forestry management and policy recommendations. KABU and TEK will support research dissemination, policy advocacy, and engage in community-based participatory research (CBPR).

3.4. Environmental Education and Public Awareness Campaigns:

Joint campaigns will be conducted across schools, communities, and the general public

to raise awareness on the importance of environmental conservation, climate action, and sustainable living. The parties will create tailored educational materials, conduct workshops, and hold seminars to empower local communities, particularly targeting youth and women in environmental conservation and green entrepreneurship.

3.5. Training, Capacity Building, and Knowledge Transfer:

Training and workshops will be held on climate-smart agriculture, forest management, and climate adaptation strategies. The parties will engage students, researchers, and community members in hands-on training through exchange programs, internships, and practical courses. The aim is to build capacity at the grassroots level, ensuring long-term skills development.

3.6. Resource Mobilization and Partnership Development:

Collaborating on joint grant applications, resource mobilization, and donor engagement to secure funding for environmental projects will be prioritized. The Parties will work together to identify suitable national and international funding streams, including Green Climate Fund (GCF) proposals, bilateral and multilateral grants, and partnerships with corporate sponsors.

3.7. Monitoring and Evaluation:

Robust monitoring and evaluation (M&E) systems will be established to track the progress and impact of the partnership. Key performance indicators (KPIs) will be developed to assess both short-term and long-term outcomes, ensuring that projects remain aligned with the objectives of environmental sustainability, climate resilience, and social inclusion.

ARTICLE 4: Roles and Responsibilities of the Parties

4.1. Roles and Obligations of Kabarak University (KABU):

KABU will provide its vast academic, research, and administrative infrastructure to support the collaborative efforts under this MoU. Key responsibilities include:

1. Offering technical expertise in environmental research, climate change studies, and natural resource management. KABU will mobilize its faculty and students to contribute to ongoing research projects and policy recommendations.
2. Allocating space for the tree nursery, botanical garden, and other environmental projects. This will also include offering logistical support for the establishment of a fully functional propagation center.
3. Organizing and hosting national and international conferences, workshops, and symposia on climate action, green economy, and environmental sustainability.
4. Creating an enabling environment for student internships, academic exchanges, and collaborative research with KEFRI and TEK.
5. Engaging actively in resource mobilization for environmental conservation projects and offering support in advocacy efforts to influence policy at local, regional, and national levels.
6. Collaborate in resource mobilization efforts, identifying funding opportunities, and cultivating partnerships with donors, private sector stakeholders, and governmental bodies.

4.2. Roles and Obligations of Team Environment Association Kenya (TEK):

TEK, being a community-based organization, will focus on mobilizing stakeholders, facilitating outreach, and driving community-based conservation initiatives. Its responsibilities include:

1. Mobilizing community members, local organizations, schools, youth, and women groups to participate in the joint activities outlined in this MoU.
2. Spearheading grassroots advocacy campaigns aimed at promoting environmental conservation, public awareness, and green entrepreneurship.
3. Developing and distributing educational materials on environmental conservation, climate change mitigation, and green economy practices.
4. Coordinating volunteer recruitment and facilitating community-driven restoration projects such as tree planting, waste management, and ecosystem rehabilitation.

5. Collaborate in resource mobilization efforts, identifying funding opportunities, and cultivating partnerships with donors, private sector stakeholders, and governmental bodies.

4.3. Roles and Obligations of KEFRI:

KEFRI, as the lead scientific institution, will contribute significantly to research and development, species selection, and scientific expertise. Key responsibilities include:

1. Leading the development of the botanical garden and tree nursery project at Kabarak University, ensuring that appropriate species are selected, propagated, and monitored.
2. Providing scientific expertise on sustainable forestry, species conservation, and climate adaptation strategies. This will include training other parties on advanced tree propagation techniques, pest and disease control, and optimal growing conditions.
3. Conducting research on forestry management, biodiversity, climate change impacts on forests, and contributing to policy discussions on forestry and environmental governance.
4. Developing systems for ongoing monitoring, evaluation, and reporting on the progress and effectiveness of projects undertaken in collaboration with KABU and TEK.
5. Facilitating internship and research opportunities for students and offering technical support to ensure the success of the joint projects.
6. Collaborate in resource mobilization efforts, identifying funding opportunities, and cultivating partnerships with donors, private sector stakeholders, and governmental bodies.

ARTICLE 5: Governance and Implementation Mechanism

To ensure effective coordination and governance of the activities under this MoU, a **Joint Project Implementation Committee (JPIC)** will be established. This committee will consist of representatives from all three parties, comprising seven members (three from KABU, two from TEK, and two from KEFRI). The JPIC will be responsible for overseeing project implementation, strategic planning, resource mobilization, conflict resolution, and performance evaluation. Meetings will be held quarterly, or more frequently as needed, to monitor the progress of ongoing projects.

The JPIC will have the authority to make decisions regarding the allocation of resources, approval of work plans, and the establishment of sub-committees to handle specific project areas.

ARTICLE 6: Financial Provisions

Each party shall be responsible for the expenses and contributions it incurs in the performance of its roles under this MoU. The JPIC will establish a transparent budgeting and financial management system to ensure the proper allocation and utilization of funds for joint projects. Funding from external sources, including grants, will be managed in accordance with mutually agreed financial protocols developed by the JPIC.

ARTICLE 7: Review and Amendments

The MoU shall be reviewed annually to assess the progress of joint activities and ensure that the goals of the partnership remain aligned with emerging environmental challenges and opportunities. Any amendments to this MoU must be made in writing and signed by authorized representatives of all parties.

ARTICLE 8: Termination

This MoU shall be terminated under the following conditions:

- a) Upon mutual agreement of the parties.
- b) Upon the expiry of a five-year period unless renewed.
- c) Upon written notice of thirty (30) days by any party.

In the event of termination, parties shall ensure the smooth closure of any ongoing activities and the proper management of remaining resources. Termination shall not affect the parties' responsibility to fulfill any outstanding obligations agreed upon prior to termination.

ARTICLE 9: Legal Effect and Dispute Resolution

This MoU is Not intended to create any legally binding obligations or partnership between the parties. It is a statement of intent to collaborate and engage in joint activities of mutual interest. Any disputes arising from the interpretation or execution of this MoU will be resolved through amicable discussions between the parties, or where necessary, through mediation by an independent party.

IN WITNESS WHEREOF, the Parties hereto have executed this Tripartite Memorandum of Understanding this 16th Monday day of December 2024.

SIGNED for and on behalf of KABARAK UNIVERSITY:

Professor Henry Kiptiony Kiplangat

Vice-Chancellor, Kabarak University

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Signature [Signature]

Date 16/12/2024

SIGNED for TEAM ENVIRONMENT ASSOCIATION KENYA:

Mr. Mathew Ochanda

Executive Director

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Signature [Signature]

Date 16th December 2024

SIGNED for Kenya Forestry Research Institute (KEFRI):

Dr. Jane Njuguna

Ag Director, KEFRI

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Email: Director@kefri.org

Signature [Signature]

Date 16.12.2024